

23CV47063 - WILLIAM CHAMBERLAIN,

Plaintiff,

v.

CALAVERAS COUNTY CLERK OF COURTS

Defendant.

TENTATIVE RULING

On November 16 2023, Plaintiff William Chamberlain (“Plaintiff”) filed the instant lawsuit against Calaveras County Clerk of Courts (“Defendant.”)

At the Case Management Conferences (“CMC”) held on March 24, 2024, July 7, 2024, and January 8, 2025, Plaintiff was advised that service had not been completed. At the January 8, 2025 CMC, the Court ordered Plaintiff to serve the summons and Complaint on all Defendants by the next CMC scheduled for July 9, 2025.

As of this hearing, Plaintiff has not filed proof of service of the summons and complaint.

California Rules of Court California Rules of Court, rule 3.110(b) provides:

The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint. When the complaint is amended to add a defendant, the added defendant must be served and proof of service must be filed within 30 days after the filing of the amended complaint.

Further, pursuant to Code Civil Procedure section 583.420(a)(1), provides for discretionary dismissal if “service is not made within two years after the action is commenced against the defendant.”

The Complaint was filed on July 18, 2023. It is not more than two years since the action was commenced and service has not been effectuated on any Defendant.

Accordingly, the Court orders Plaintiff to appear at a hearing on Tuesday, September 23, 2025 at 1:30 p.m. in Dept. 3. to show cause as to why service has not been completed. The failure to appear at the hearing or to show cause will result in the matter being immediately dismissed, without prejudice.

23CV47064 - ANGELA CHAMBERLAIN, et al.

Plaintiffs,

v.

CALAVERAS COUNTY CLERK OF COURTS

Defendant.

TENTATIVE RULING

On November 16 2023, Plaintiffs Angela and William Chamberlain (“Plaintiffs”) filed the instant lawsuit against Calaveras County Clerk of Courts (“Defendant.”)

At the Case Management Conferences (“CMC”) held on March 20, 2024, July 17, 2024, and January 8, 2025, Plaintiffs were advised that service had not been completed. At the January 8, 2025 CMC, the Court ordered Plaintiffs to serve the summons and Complaint on all Defendants by the next CMC scheduled for July 9, 2025.

As of this hearing, Plaintiffs have not filed proof of service of the summons and complaint.

California Rules of Court California Rules of Court, rule 3.110(b) provides:

The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint. When the complaint is amended to add a defendant, the added defendant must be served and proof of service must be filed within 30 days after the filing of the amended complaint.

Further, pursuant to Code Civil Procedure section 583.420(a)(1), provides for discretionary dismissal if “service is not made within two years after the action is commenced against the defendant.”

The Complaint was filed on July 18, 2023. It is not more than two years since the action was commenced and service has not been effectuated on any Defendants.

Accordingly, the Court orders Plaintiffs to appear at a hearing on Tuesday, September 23, 2025 at 1:30 p.m. in Dept. 3. to show cause as to why service has not been completed. The failure to appear at the hearing or to show cause will result in the matter being immediately dismissed, without prejudice.